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CASE #	CASE NAME	HEARING NAME
CVRI2405772	MCCLLOUD VS RIVERSIDE COUNTY TRANSPORTATION	MOTION TO CONTEST GOOD FAITH SETTLEMENT

Tentative Ruling:

GRANT the motion. Grant Cross-Defendants Request for Judicial Notice.

Cross-Complainants Riverside County Transportation and George Peralta move to contest the application of Cross-Defendants Lanette Burleson and Kevin Washington for determination of good faith settlement. (CCP § 877.6.) Cross-Defendants seek approval for a \$30,000 policy limit settlement with Plaintiff. The parties have submitted supplemental briefing which the court has now reviewed and considered.

The court grants the motion because Cross-Defendants have not shown that the *Tech-Bilt* factors lead to a determination of a good faith settlement. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488) The Tech-Bilt factors to be considered by the court are: (1) a rough approximation of the plaintiff's total recovery and the settlor's proportionate liability;(2) the amount paid in settlement;(3) the allocation of the settlement proceeds among plaintiffs; (4) a recognition that the settlor should pay less in settlement than he would if he were found liable after trial; (5) the settlor's financial condition and insurance policy limits; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendant.

Here, it is undisputed that there is no evidence of collusion, fraud or tortious conduct. The proposed settlement amount is \$30,000, which is Plaintiff's policy limit. The issue is whether the \$30,000 settlement is disproportionate to Cross-Defendant's liability. Plaintiff is claiming \$1.2 million in total damages. A \$30,000 settlement represents less than 3% of this total. While it is true that Peralta was the primary collision factor by executing an unsafe U-turn, Cross-Complainants have presented Plaintiff's own testimony pointing to Burlenson's conduct as a significant contributing factor. McCloud states in her deposition that Burleson was distracted by looking at warehouses immediately prior to the accident. There is also a report that Burleson was possibly driving 60-mph in a 50-mph zone. It is plausible that Burleson could be assigned a much higher percentage of fault at trial than her percentage of the damages in settlement, although Cross-Complainant's assessment that a Jury might find Cross-Defendant as much as 50% liable is very unlikely. In any event, the \$30,000 settlement is disproportionate to Burleson's potential liability. The \$30,000 settlement is outside the range of Burleson's proportionate liability.

In addition, the court finds that there is insufficient evidence of Burleson's financial condition to conclude she is insolvent or judgment-proof. No evidence has been presented of Burlenson's net worth, assets, income, other insurance, or ability to satisfy a potential judgment. The evidence is that Burlenson previously "worked rideshare and delivery service jobs" and "also has two kids" (Ovanesian Decl., Ex. A, Washington

Depo., at pp.25, 28.), but this does not establish her financial condition at the time of settlement. Even if we accept Washington's hearsay testimony that Burlenson may be "homeless", that does not establish that she is without assets, income, other insurance, or inability to contribute towards a settlement. The court therefore lacks competent evidence concerning Burlenson's financial condition.

For these reasons, the court finds that it has no basis to conclude that the proposed policy limit settlement satisfies the *Tech-Bilt* factors. The motion is granted. The court finds that the proposed settlement is not in good faith.